

Sexual Misconduct Policy (Title IX), Nondiscrimination Policy, Bystander Intervention and Responding *In Their Footsteps*

Role of the RA

Kari Hohn (Interim Title IX / Equity & Compliance)
Seth Quam (Center for Well-Being)
Fall 2025

Plan for Today

- Who we are, our roles, and our responsibilities
- Your role as RAs
- Some context for our work
- Policy
 - The basics
 - What do you already know?
 - Highlights
- Bystander Intervention
- *In Their Footsteps*
 - Scenarios
 - Resources & Referral
- Responding to disclosures





This is Not New Information

Plenty to learn - our campus community can always be stronger!

- Federal Regulation Requirements (TIX) to offer new student training on TIX
- It's also the right thing to do – and we do more at St. Thomas!
- New Student Title IX Training – online
- New Student Diversity Training - online
- New Student FYEX Course
- Annual Title IX, Bias Incident and Sexual Violence Prevention RA Training (this session!)

We ask returning RAs to take on a leadership role in today's session, but also expect new-to-RA-role students to offer their insight and experience.

Ultimately, today and moving forward, we look to all of you as student leaders in residence life to help strengthen our community!

Seth and his role at St. Thomas

Coordinate...

- Facilitation of workshops on violence prevention, healthy relationships, bystander intervention, and healthy masculinity
- Violence prevention events throughout campus

Responsible for...

- Graduate Assistant
- Peer Health Educators
 - Do a lot of tabling and other events around campus!



Kari's Interim Role at St. Thomas

(new Coordinator coming soon!)

Coordinates...

- Title IX Prevention, Support, and Response
- Bias Incident Response
- ADA Grievances

Responsible for...

- Sexual Misconduct Policy
- Nondiscrimination and Anti-Harassment Policy

Works within...

- Dean of Students Office
- Human Resources Office



Pre-Survey!



Big Picture of Title IX Work

Eliminate / Prevent – concerning or questionable behaviors

Address – concerns through formal and alternative processes

Support – all impacted students and employees

Bias Incident
Report
Response

Title IX
Report
Response

Why this matters – **sexual misconduct** is happening at St. Thomas



Seventy two (72) student incidents of sexual misconduct / Title IX were reported to the Title IX Coordinator in 2024-25

- All impacted students were provided **resources for supportive and safety measures** (through TIX – if name was shared)
 - 21 **no contact orders** were put in place
 - 23 students received **academic accommodations** in one or more courses- i.e., modified assignments, altered exam or homework submission deadlines, change in small group assignment, move to a different section, or end-of-semester incompletes.
- Every reporting student was offered options for addressing their concerns, including formal investigation/adjudication and the alternative resolution process.

Why this matters – **bias and discrimination** is happening at St. Thomas



22 student bias/discriminatory concerns
were reported to the Title IX Coordinator in 2024-25

A total of 49 bias/discriminatory concerns
were reported to the Title IX Coordinator in 2024-25

All impacted parties were provided **resources for supportive and safety measures** as well as **process options to address their concerns**.

- **mutual no contact orders** – prohibiting direct and indirect contact between two individuals
- **academic accommodations** – i.e., modified assignments, altered exam or homework submission deadlines, change in small group assignment, move to a different section, or end-of-semester incompletes.
- **workplace accommodations** – i.e., modified work schedule or temporary leave

Why this matters – student survey results



Policy Knowledge

- 57% of respondents know the process at St. Thomas for reporting sexual assault

Safe Communities

- 45% of respondents have experienced some kind of unwanted sexual contact
- 41% of those who had experienced sexual assault said there were bystanders present

Support Friends

- Of those who had experienced SA, 73% told a close friend

Resources

- 59% of respondents know what confidential resources exist on campus

Why this matters – **sexual misconduct, bias, and hate impacts student success**



- Decreased academic performance
- Learning problems
- PTSD and suicidal ideation
- Lower GPA
- Increase in attrition

Of Note - More than 50% of college sexual assaults occur in the first 4 months of the academic year (Aug – Nov)



Your Role as an RA

PLEASE DO

- ✓ Understand the basics of the policies.
- ✓ Tell students you are mandated to share anything related to sexual misconduct or bias/discrimination.
- ✓ Tell students you believe them and thank them for sharing with you and tell them you want to help – and making a report is helping!
- ✓ Connect with your CD/GSA and with Title IX Coordinator right away!
- ✓ Ask for help when you are unsure!

PLEASE DON'T

- ✓ Investigate or confront the accused person about what was shared with you.
- ✓ Handle cases of sexual misconduct yourself by producing what you believe to be an amicable solution.
- ✓ Ask "why" questions or questions implying blame.
- ✓ Talk to others about what was shared with you (outside of those who need to know).
- ✓ Feel like you must memorize all the details from this presentation.



Policy knowledge
Sexual Misconduct Policy &
Nondiscrimination and Anti-harassment Policy

Your responsibilities as a Resident Advisors when
dealing with misconduct that is sexual in nature

How to support and respond to residents, when
reports of sexual misconduct are made

Tools to create a safe community through bystander
intervention and role-playing / scenarios

Available resource and referral to help myself and
my residents

Takeaways

The Policies:

Sexual Misconduct (Title IX) and Nondiscrimination and Anti-harassment



Title IX Basics

Title IX is a federal law – Educational Amendment 1972

"No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving federal financial assistance"

Prevent, Eliminate, Address and Support

Title IX Basics

Title IX prohibits discrimination on the basis of sex by any educational program or activity that receives federal funds.

Eliminate / Prevent (prohibitive behaviors in policy)

- St. Thomas must have a policy that prohibits gender discrimination/sexual misconduct, and provide policy and prevention education

Address (through formal or alternative processes)

- St. Thomas must provide mechanisms for addressing issues of sex discrimination/sexual misconduct that affects students and employees (we cannot ignore when we are aware it is happening)

Support (all impacted students or employees)

- St. Thomas must provide support for those who report and those who are impacted by sex discrimination/sexual misconduct

St. Thomas Sexual Misconduct Policy (including Title IX)

- Defines prohibitive conduct — sexual assault, harassment, stalking, dating violence, domestic violence, exploitation, sex discrimination
- Policy protects and addresses employees, **students**, visitors, guests, and volunteers
- Related to both **on and off campus** behaviors
- **Offers support resources on and off-campus**
- Required reporting obligations for all employees (**including RAs**)
- **Amnesty to drug & alcohol policies** – remove barriers for reporting
- Protected - **non-retaliation** for those who report in good-faith
- Academic Freedom is protected for teaching faculty – they can teach about content that may be sexual in nature and address content that falls under Title IX – but they cannot act or behave in a way that may fall under our policy

Stalking

Repeated and unwanted communication, gift-giving, or following someone - causing emotional distress

Harassment

Quid pro quo, unwelcome sexual comments, misgendering, jokes, hostile work environment

Assault

Non-consensual or forced touching, kissing, penetration

Sex Discrimination

Discrimination based on sex stereotypes, gender identity, sexual orientation, sex characteristics, pregnancy

Sexual Misconduct Policy prohibitive conduct

Exploitation

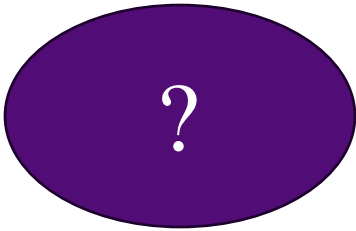
Catch-all- recording and sharing sexual content or watching a sexual act without consent, exposing or streaking

Domestic Violence

Stalking, harassment or assault with someone in a domestic or dating relationship

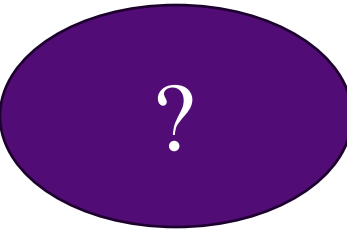
Dating Violence

Nondiscrimination & Anti-Harassment Policy



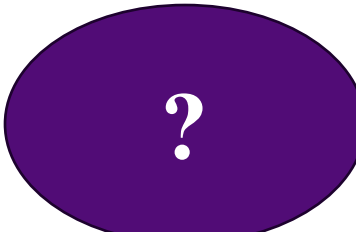
?

Unwelcome conduct – related to a person's protected characteristic



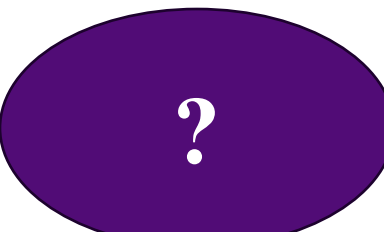
?

Unfavorable or unfair treatment – because of a protected characteristic



?

...and the conduct/treatment has a **negative impact and/or interferes with someone's ability to participate in or benefit from employment or education** at St. Thomas



?

Protected characteristics: DO YOU KNOW WHAT SOME OF THE PROTECTED CHARACTERISTICS ARE?

Do you know what the prohibitive and unlawful conduct is that falls under this policy (represented by the four question marks?)

Nondiscrimination & Anti-Harassment Policy

Bias

Unwelcome conduct – related to protected characteristic

Unfavorable or unfair treatment – because of a protected characteristic

Hate
Crime

...and the conduct/treatment has a **negative impact and/or interferes with someone's ability to participate in or benefit from employment or education** at St. Thomas

Harassment

Protected characteristics: race, color, creed, religion, national origin, sex, sexual orientation, gender identity or expression, familial status, disability, age, marital status, status regarding public assistance, veteran status

Discrimination

Other Key Concepts and Considerations

Consent

Incapacitation

Amnesty

No Retaliation

Bystander Intervention



What else do you remember?

1. What does it mean to give consent sexually to someone? How do you know you have consent?
2. What do you remember about incapacitation versus intoxication, related to sexual misconduct and the ability to provide consent?
3. What is Bystander Intervention and what are the 5 D's of Bystander Intervention?

CONSENT



Consent is **clear conduct or words** that indicate a person **freely agrees** to engage in a sexual act at the time of the act...

- Consent is not effective when
 - **force, threat, or coercion** is used
 - the recipient party is **incapacitated, asleep, or unconscious**
 - there is **silence, non-communication, failure to resist, the absence of “no”**
- Consent to one type of sexual activity does not imply consent to other
- Past consent does not equal future consent
- Consent can be withdrawn at any time

INCAPACITATION



Incapacitation is the inability to understand the facts, nature of, or extent of a sexual situation.

- Do they know the “**who, what, when, where, why or how**” of the sexual situation?
- One may be asleep, unconscious, or seemingly unaware of what is happening around them. Blacked out.
- Warning signs – slurring speech, stumbling, slumped over, unable to zip jacket or put on mittens
- Being drunk does not always equal incapacitation

Note- being intoxicated or under the influence of any substance at the time of sexual contact is never an excuse for violating this policy.

AMNESTY & NO RETALIATION



A student who reports sexual misconduct in *good faith*, either as a reporting party as a witness - *will not be subject to disciplinary action for drugs and alcohol use* under the St. Thomas student code of conduct AND *is protected from retaliation* under the Sexual Misconduct policy

It is important to remove barriers for reporting and seeking help when relationship or sexual violence has occurred

Bystander Intervention

Bystander Intervention is recognizing a potentially harmful situation or interaction and choosing to respond in a way that could positively influence the outcome.

- **DISTRACT:** Take an indirect approach to de-escalate the situation
- **DELEGATE:** Get help from someone else
- **DOCUMENT:** Keep evidence of the situation, such as screenshots, writing, and emails
- **DELAY:** After the incident is over, check-in with the person who was harmed or at-risk.
- **DIRECT:** Assess your safety first. Speak up about the harmful situation. Ask clarifying questions. Stay calm but be firm and clear

*ihollaback.org

In Their Footsteps Activity



Consider these Questions Post-Activity



- How might you have been able to assist these students differently based on other resources you are aware of on campus or in the local community? What more do you need to know to best help / show support?
- What could you do proactively to create an environment where sexual violence won't happen in the first place?
- If you would have been present during these incidents described, how might you have intervened?
 - Can you think of examples from each of the 5 D's?
- From your perspective, what would have been the barriers for intervening?

Bystander Intervention

Bystander Intervention is recognizing a potentially harmful situation or interaction and choosing to respond in a way that could positively influence the outcome.

- **DISTRACT:** Take an indirect approach to de-escalate the situation
- **DELEGATE:** Get help from someone else
- **DOCUMENT:** Keep evidence of the situation, such as screenshots, writing, and emails
- **DELAY:** After the incident is over, check-in with the person who was harmed or at-risk.
- **DIRECT:** Assess your safety first. Speak up about the harmful situation. Ask clarifying questions. Stay calm but be firm and clear

*ihollaback.org

Your Role as an RA: Response and Support



FAQ – sexual misconduct support and response

When do RAs report?

How and where do RAs report?

What do RAs report?

Are RAs confidential?

How to RAs best support residents?

What happens when an RA reports?

Required Response

All University employees (including Resident Advisors) are required to report **information related to sexual misconduct** to the Title IX Coordinator when they learn about something that **may constitute sexual misconduct**.

You can't turn off being an RA.

In nearly ALL instances, you are required to report.

Remind residents often that you are a required reporter!

Employees who are **confidential** do not have an obligation to report (CAPS, Health Services, Clergy). RAs are **not** confidential

What do RAs Report?

Any conduct that could be considered sexual harassment or misconduct:

Sexual harassment

Sexual assault

Fondling/groping

Rape

Statutory rape

Incest

Dating violence

Domestic violence

Stalking

Sexual exploitation

(We'll discuss bias/discrimination reporting in a moment)

When do RAs Report?



REQUIRED

- Information learned or shared with you in the context of your RA role
 - While on duty
 - Incident that occurred on your floor
 - Revealed one-on-one by a resident
- You must report in all other instances that are not represented below in “not required”

NOT REQUIRED

- You experienced sexual violence yourself - you do not need to share this (but seeking supportive and safety measures are encouraged)
- You are not the primary, exclusive or intended receiver of the information that was learned or shared. For example – while attending a "Take Back the Night" event or other public awareness event
- You learned about misconduct prior to your RA role – unless you've gained recent information while in the RA role, you don't need to report

Responding to a Report of Sexual Misconduct



1. RA calls on-duty CD/GSA for support and for reporting purposes. RA should NOT submit an Incident Report so that we limit the people who know
2. CD/GSA responds in the moment to the reporting party, offers support and resources
3. CD/GSA completes the Title IX Report Form OR receives the information from the RA and they complete the Title IX Report Form together
 - the reporting party may or may not be available for a conversation with the CD/GSA or may not want to.
4. CD/GSA sends an email to the reporting party letting them know options and support
5. CD/GSA also informs the Assoc. Director and Director, not with names and details, but that a report has been submitted
6. Title IX Coordinator receives the Title IX Report and begins outreach within one business day (typically within 24-hours) - see flow chart slide

When an incident occurs in your hall and/or is impacting your community - Notify on-duty professional staff (after hours) or your staff supervisor (workday) to take immediate action, and then plan together to submit a Title IX Report

<https://www.stthomas.edu/title-ix/>

UNIVERSITY OF
St. Thomas All for the Common Good®

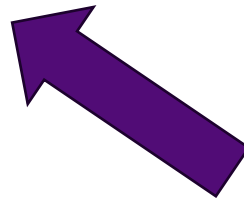
Home / Title IX

Title IX- Sexual Misconduct Support and Response

The University of St. Thomas prohibits all forms of sexual misconduct and gender discrimination and works to help those impacted in the form of protective and supportive measures. Under Title IX specifically, the university is responsible for preventing misconduct from happening.

REPORT AN INCIDENT

Go to One.StThomas
search "Title IX"



Where to Report





What should you do if you're
unsure
whether you need to report or
not?

What should you say?



Before a disclosure:

I really want to hear what you have to say, but before you go any further, I want to remind you that I am not a confidential resource. If you disclose experiencing sexual misconduct, I'll need to share that with the Title IX Coordinator. If you'd rather speak with a confidential resource about this, I can help connect you...

Remind community members of your reporting obligations often

Remind about amnesty policy

Remind about prohibition of retaliation

After a disclosure:

- Thank you for telling me
- I'm obligated to share this with the Title IX Coordinator
- Offer emotional support – sit, listen, validate
- Do you feel safe right now?
- Do you need medical attention?
- How can I help in this moment?
- Would you like me to help you reach out to the Title IX Coordinator (or some other resource) right now?
- Remind them that they are in control and can choose how to engage, if at all, from here



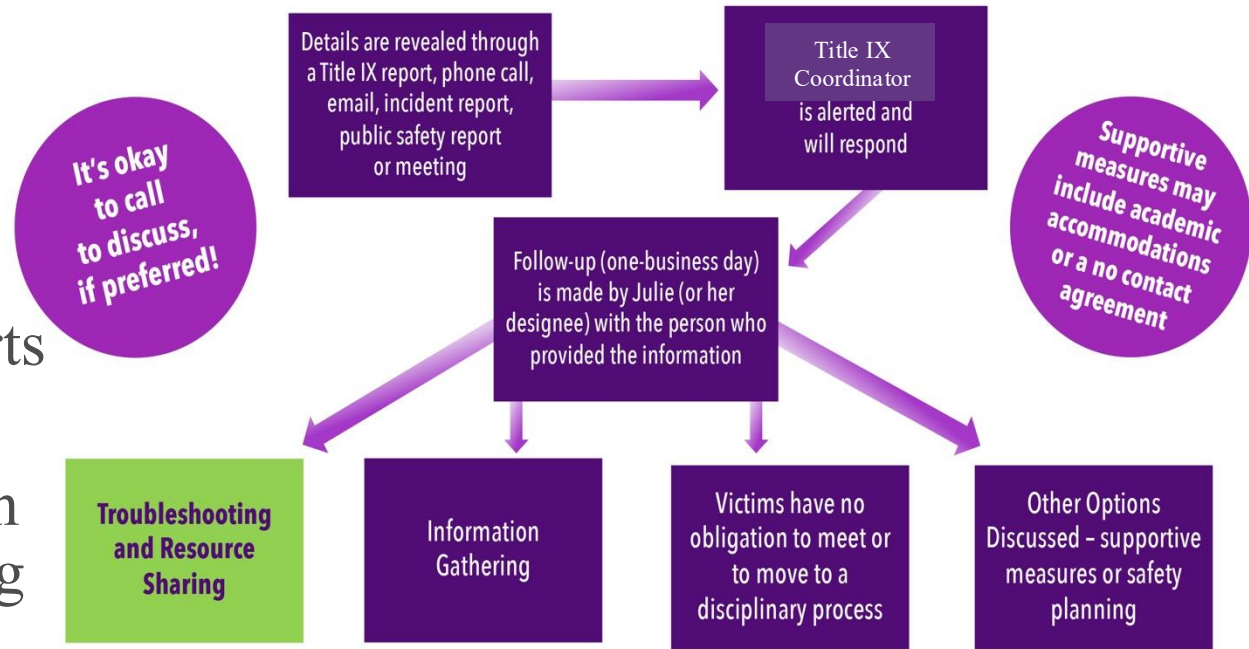
What NOT to say or do...

- “Tell me more”
- Do not ask additional questions about the incident or attempt to investigate in any way
- “Why didn’t you...?”
- Confront the accused person
- Talk to others about what was shared with you (outside of those who need to know)
- Promise confidentiality
- Attempt to categorize or label someone’s experience
- Pressure someone towards a specific course of action, outside of meeting with the Title IX Coordinator

Title IX Coordinator Response

- Responds to all reports
- May call RA, CD or GSA for more info on report before reaching out to student
- Allows parties to share their experience
- Together determine next steps with safety and support as priorities
- Discuss resolution options (formal or alternative)

University Response to a Title IX Report



We welcome all reports as an opportunity to provide support, better understand our community, & find more ways to improve our culture.

Parties get to decide if they want to participate in a process.

- Considers and develops supportive & safety measures
 - Academic accommodations
 - No contact order
 - Referral to on / off campus resources
 - Center for Well-Being, Priest, Clergy, victim's advocate, police



To be clear!

- The only thing that happens after making a required report is the Title IX Coordinator reaches out to the affected individual to offer **supports and options**.
- The affected individual gets to decide whether, if/when, and how to engage from there.
- Some folks might wait to connect with the Title IX Coordinator until they feel ready, but the option to meet is always there.

Bias/Discrimination RA Reporting Requirements



- RAs are also required to report instances of bias/discrimination of which they become aware.
- This could include racist or homophobic signage you find in the hallway or other examples of bias/discrimination that might be visible to you in your role.
- It also includes instances where students disclose experiencing bias or discrimination to you.
- **Contact your CD/GSA** for additional guidance if you're aware of a bias/discrimination concern.

<https://stthomas.edu/student-affairs/departments/dean-of-students/bias-hate-reporting/index.html>

Coming soon!



One website where individuals can report any type of concern. CDs will share more info once it's live.





What if it's an emergency?

Call Public Safety immediately and notify your CD/GSA.

The Title IX Coordinator is not a 24/7 resource.

Supporting a Resident who Discloses

- Believe them
- Listen - let them tell their story
- Do not try to investigate or fact-find (contain your curiosity)
- Allow them to stay in control, as best you can
- Thank them for sharing

Please remember your obligation to report. Keep in mind- your resident choose to report their experience with you – please honor that and keep this information private!

Also, CD/GSA can support you.

- Provide them with options and allow them to choose who else or where else they want to go for support
 - CAPS, roommate, friends, family, hospital, public safety, police – it is up to them to decide.
- Listen, support, refer – **LOTS OF RESOURCES AVAILABLE**



Available On-campus Resources

- Center for Well-Being
 - Health Services medical care and/or a SANE- forensic nurse examination (**confidential**)
 - Counseling and Psychological Services (**confidential**)
 - Health Promotion, Resilience and Violence Prevention (Seth)
- Title IX Coordinator (Kari)
- Others
 - Dean of Students Office
 - Residence Life Staff
 - Public Safety
 - Clergy/Priests (**confidential**)
 - Campus Ministry
- All faculty and staff are trained and should know how to refer

STEPS OF THE **SANE** EXAM

A **SANE nurse** is a specialized professional (RN or NP) who provides emotional support and compassionate, trauma-informed care to victims of sexual assault.

A **SANE exam** is designed to identify injuries that could be used by legal authorities.

1 **CONSENT**



We need your permission to do this exam. The nurse will explain the whole process and can answer any questions you may have. No one will be forced to do ANY part of the exam, but it is helpful to complete the entire exam for your health and safety.

2 **TALK WITH THE NURSE**



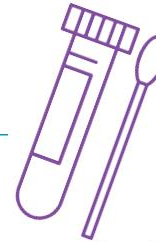
This is the time when you get to talk to the nurse alone about what happened. This helps the nurse to best understand where to look for injuries and what kind of treatment is needed. After this part, your support person can come right back in the room.

3 **PHYSICAL EXAM**



At this time, the nurse will look over your body for any injuries. They will document any bruise, scratch or cut, and take pictures of them (even if they are just from falling off your bike, they are important).

4 **GENITAL EXAM**



After looking at your body, the nurse will look at your private area. Nothing we do should be painful, and if you ever experience pain, tell your nurse and we will stop. Looking at this area is important so that we can see any injuries, healed injuries, signs of infection, or anatomical variations that have not been detected.

We take pictures of this area for the purpose of magnifying the photos to detect anything missed with our eyes, and to review with our doctor, if needed. The pictures are protected and only ever released to authorized staff involved in your case.

5 **EVIDENCE COLLECTION**



We will collect potential evidence in the form of swabs up to 10 days after the assault. These swabs are similar to the swabs used to clean your ears. They are not painful. The swabs are able to collect DNA evidence in this time-frame, but the exam is still very important without this step.

6 **STI TESTING AND MEDICATION**



We can provide STI testing. This includes testing for Chlamydia and Gonorrhea. Only in high risk circumstances do we do more extensive testing for HIV, Hepatitis C, and Syphilis. Depending upon the testing, this is done through urine, swabs or some blood work (only in high-risk situations). Depending upon time frame and circumstances of the assault, we will discuss the need for any medications.

7 **YOU'RE DONE!**



You have made it through the whole exam! We will give you all of the information you need to follow up with any test results, evidence collection, and answer any questions that you may have.

Center for Well-Being |  **St. Thomas**



Confidential Resources

off-campus

SOS (Ramsey County victim advocate):

651-266-1000

Sexual Violence Center (Hennepin Co. victim advocate):

612-871-5111

Sexual Assault Nurse Examiner at Regions Hospital (A forensic exam is best w/in 5 days, but may yield some evidence within 10 days)

This is a lot – what have we missed?



**Any
Questions?**

Policy knowledge
Sexual Misconduct Policy &
Nondiscrimination and Anti-harassment Policy

Your responsibilities as a Resident Advisor when
dealing with misconduct that is sexual in nature

How to support and respond to residents, when
reports of sexual misconduct are made

Tools to create a safe community through bystander
intervention and role-playing / scenarios

Available resource and referral to help myself and
my residents

Post-Survey!



*RAs, thank you in advance,
for the care and support you
will provide to your residents,
and the impact you will have
on our community.*

*Your work is important, and
we appreciate you!*

Contact Information

Kari Hohn

Title IX Coordinator

Offices

Aquinas 213

Anderson Student Center 241

hohn6376@stthomas.edu

title-ix@stthomas.edu

651-962-6882



@tommietix55105

Seth Quam

Health Promotion & Violence
Prevention Program Manager

Office

Center for Well-Being - 2nd Floor

sethquam@stthomas.edu



@stthomas_wellbeing

Title IX Website



If you have interest in serving on the
TIXC Student Advisory Group, follow
[@tommietix55105](https://www.instagram.com/tommietix55105) for more information!